

HOUSE BILL 2367

By Doggett

a*29,39,40

AN ACT to amend Tennessee Code Annotated, Title 29;
Title 39 and Title 40, relative to criminal justice.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-10-103, is amended by
designating the current language as subsection (a) and adding the following new subsection (b):

(b) This section does not authorize the exclusion of:

(1) A party who is a natural person;

(2) A person designated by counsel for a party that is not a natural
person;

(3) A person whose presence is shown by a party to be essential to the
presentation of the party's cause; or

(4) A victim of a criminal offense or, if the victim is unable to attend, the
representative of a victim, when the representative has been selected by the
victim, the victim's guardian, or the victim's family, and is in addition to the state's
designated witness pursuant to subdivision (b)(2).

SECTION 2. Tennessee Code Annotated, Section 40-35-304, is amended by deleting
subdivision (e)(2) and substituting:

(2) "Victim" includes:

(A) A reciprocal, as defined in § 56-16-102, whether or not formed under
the laws of this state, when the reciprocal has compensated a subscriber for loss
incurred as a result of the offense, to the extent that the reciprocal paid the
compensation to the subscriber; and

(B) A law enforcement agency that expends funds for the purchase of controlled substances or other items of contraband during investigations into criminal activity.

SECTION 3. Tennessee Code Annotated, Section 29-13-104(1), is amended by adding the following new subdivisions:

(D) The crime involved the offense of evading arrest under § 39-16-603(b), which directly resulted in serious bodily injury or death to the victim; or

(E) The crime involved the offense of vehicular homicide under § 39-13-213(a)(1), (a)(3), or (a)(4), which directly resulted in serious bodily injury or death to the victim;

SECTION 4. Tennessee Code Annotated, Section 39-16-510(a)(2)(B), is amended by adding the following new subdivision:

(xiv) A victim, as defined in § 40-38-302 or § 40-38-203.

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it.